



Commonwealth of Massachusetts
Executive Office of Energy & Environmental Affairs

Department of Environmental Protection

Northeast Regional Office • 205B Lowell Street, Wilmington MA 01887 • 978-694-3200

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May 6, 2022

Joanne Delapa
c/o Delapa Realty Trust
P.O. Box 277
Norwood, MA 02062

RE: WETLANDS/WESTWOOD
DEP File #338-0706
42 Mill Street
Superseding Order of Conditions

Dear Ms. Delapa,

Following an in-depth review of the file referenced above, and in accordance with Massachusetts General Laws, Chapter 131, Section 40, the Northeast Regional Office of the Massachusetts Department of Environmental Protection, Wetlands Program (MassDEP), is issuing the enclosed Superseding Order of Conditions (SOC) approving the project. This SOC allows the project based upon: 1) information contained in the file to date and plans submitted; 2) information gathered during the site inspection; and 3) reasons MassDEP has deemed necessary to protect the statutory interests identified in the Wetlands Protection Act (the "Act") and Regulations.

The project site is located at 42 Mill Street in Westwood, MA (Map 28, Lot 013). It consists of approximately 4.0 acres of currently undeveloped forested land that was established since 1969. The project site is bordered by residences to the north, east, south, and west. The adjacent lot located to the north, known as lot 2A, is host to a shared common driveway which exists within a Right of Way easement on that property. This shared common driveway will be utilized to access the project site. A perennial stream known as Mill Brook flows onto the property from the north and into Bakers Pond which is centrally located on the project site. Mill Brook then flows out of Bakers Pond in the southwesterly direction off-site. The dwelling is proposed in the only upland area located on the western portion of the project site.

The project as proposed in the Notice of Intent (NOI) filed with the Westwood Conservation Commission (WCC) on June 18, 2020, consists of the construction of a single-family home, bituminous driveway, repaving the existing shared common driveway, lawn, grading, landscaping and installation of water and sewer utilities via directional drilling. In order to install the bituminous driveway, approximately 550 square feet of Bordering Vegetated Wetlands (BVW) will be filled. In order to mitigate for the filling of BVW, the project proposes

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to create approximately 700 square feet of BVW. The proposed driveway will result in unquantified amounts of fill in Bordering Land Subject to Flooding (BLSF). In addition, no compensatory flood storage was proposed based on the plan submitted with the NOI. The project site contains approximately 115,054 square feet of Riverfront Area. The proposed project will result in approximately 10,702 square feet of new permanent alteration within the outer riparian zone of the 200-foot Riverfront Area. The proposed project will also result in approximately 4,801 square feet of temporary impacts to the 200-foot Riverfront Area for work associated with re-paving the common driveway. Of the 4,801 square feet of temporary impacts to the 200-foot Riverfront Area, 2,744 square feet will be located in the inner riparian zone and 2,057 square feet will be located in the outer riparian zone.

On December 19, 2016, MassDEP issued a Final Order of Resource Area Delineation (FORAD), DEP File #338-0594, for the project site. The FORAD received an Extension Permit on December 24, 2019, with a new expiration date of December 19, 2022.

On November 18, 2021, the WCC issued an Order of Conditions (OOC) denying the project based on its opinion that the proposed project could not be conditioned to meet the performance standards set forth in the Regulations or the local Bylaw. Specifically, the WCC claims that the project does not meet the performance standards established in 310 CMR 10.55 and 310 CMR 10.58 for BVW and Riverfront Area, respectively.

On December 1, 2021, MassDEP received your appeal of the OOC/Denial for issuance of a Superseding Order of Conditions. The appeal states that it is your opinion the proposed project meets the performance standards established in 310 CMR 10.55 and 310 CMR 10.58. Specifically, you state that the project involves 550 sq. ft. of wetland fill and 700 sq. ft. of wetland replication which is more than the required 1:1 wetland replication requirement established in 310 CMR 10.55(4)(b)(1). Additionally, you state that the WCC incorrectly calculated the amount of impact to the Riverfront Area. You state that in the NOI, you provided the accurate amount of impacts to Riverfront Area based on the location of the Riverfront Area approved under the FORAD and demonstrated how the proposed project meets the performance standards established in 310 CMR 10.58(4).

On January 6, 2022, MassDEP conducted a site visit. In attendance were your representative, a representative from the WCC and their third-party reviewer. At the site visit, MassDEP discussed the project and observed the areas where work is proposed.

MassDEP's review of the file and site visit confirms that the project site contains the following Areas Subject to Protection Under the Act: BVW, Inland Bank, LUW, Riverfront Area associated with Mill Brook, and BLSF. These areas are significant to the statutory interests listed on the attached form. Portions of the proposed project will occur within the 100-foot inner riparian zone and the 200-foot outer riparian zone of the Riverfront Area, BVW, BLSF (*FEMA flood Map 25021C0178E, eff. 7/17/2012*), and associated buffer zones.

Pursuant to 310 CMR 10.58(4)(d)1 the issuing authority may allow the alteration of up to 5000 square feet or 10% of the 200-foot riverfront area within the lot, whichever is greater, on a lot recorded on or before October 6, 1997 or lots recorded after October 6, 1997. The project site

contains approximately 115,054 square feet of Riverfront Area. The proposed project will result in approximately 10,702 square feet of new permanent alteration within the 200-foot Riverfront Area. The permanent impacts to Riverfront Area are less than 10% (11,505 square feet) of the total square footage of Riverfront Area on the parcel. The proposed project will also result in approximately 4,801 square feet of temporary impacts to the 200-foot Riverfront Area associated with re-paving the common driveway.

To access the only buildable upland area on the project site from the common shared driveway, an individual driveway is proposed to be constructed that involves crossing an existing area of BVW and BLSF. A 12" reinforced concrete pipe will be placed at the crossing to maintain a hydrologic connection between two areas of BVW. As stated in the NOI the proposed crossing will result in approximately 550 square feet of BVW fill with 700 square feet of BVW replication. In accordance with 310 CMR 10.55(4)(b) the issuing authority may permit work that will result in the loss of up to 5000 square feet of BVW when the replacement area to be created equals that of the area to be lost. As currently proposed, the project will create an additional 150 square feet of BVW which exceeds the minimum 1:1 replication ratio.

Upon review of plan Sheet 1 of 3 entitled, "Proposed Site Plan of Land Lot 2B- Mill Street Westwood, Massachusetts," prepared by GLM Engineering Consultants, Inc., dated November 2, 2018, and revised July 3, 2021, no amount of alteration in BLSF for portions of the proposed individual driveway or amount of compensatory flood storage was shown. Therefore, on January 11, 2022, MassDEP issued an information request letter asking you to quantify impacts to BLSF and the amount of compensatory flood storage to be provided in accordance with performance standards under 310 CMR 10.57(4).

On February 8, 2022, your representative submitted a response to MassDEP's request by providing a response letter and a revised plan set (3) with a revision date of January 31, 2022. The revised plans show the location and amount of fill to be placed in BLSF and the location and amount of compensatory flood storage to be provided. As stated in the response approximately 285 cubic feet of fill will be placed in BLSF between elevations 193.5-194, for portions of the proposed driveway. Approximately 380 cubic feet of compensatory flood storage will be provided between elevations 193.5-194, a net incremental increase of 95 cubic feet of compensatory flood storage. On February 23, 2022, MassDEP requested you to provide a cut and fill table as requested in the January 11, 2022 information request letter. On February 25, 2022, your representative submitted a BLSF cut/fill chart.

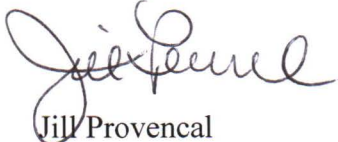
On March 7, 2022, MassDEP issued another information request letter requesting you to clarify the floodplain elevations shown on the project plans as it appeared to be inconsistent with the topography on the property.

On March 14, 2022, your representative submitted a response to MassDEP addressing the noted concerns with a new revised plan set with a revision date of March 8, 2022. Your representative corrected the floodplain previously listed as Zone A instead of the correct Zone AE with a BFE of 190', 191', and 194'.

Based on the information and plans contained in the file, information gathered at the site inspection, and consideration of all issues raised through the appeal, it is MassDEP's opinion that the project as currently proposed meets performance standards under 310 CMR 10.55(4), 310 CMR 10.57(4)(a), and 310 CMR 10.58(4), for BVW, BLSF and Riverfront Area, respectively. It is MassDEP's opinion that the enclosed SOC approving this project serves to protect the interests of the Act and Regulations. Please be advised that it is MassDEP's responsibility to address only those interests identified in the Act. However, MassDEP reserves the right, should there be further proceedings in this case, to raise additional issues and present further evidence as may be appropriate. Should you or any concerned party dispute these findings, your attention is directed to the language at the end of the attached Superseding Order specifying the rights and procedures for appeal.

Should you have any questions regarding this letter, please contact Tyler Ferrick at Tyler.Ferrick@mass.gov.

Sincerely,



Jill Provencal
Section Chief
Wetlands Program - NERO

cc: Westwood Conservation Commission, 50 Carby Street, Westwood, MA 02090
Tim McGuire, Goddard Consulting, 291 Main Street, Suite 8, Northborough, MA 01532
Brian Donahoe, Goldman Environmental Consultants, 60 Brooks Drive, Braintree, MA 02184